

Enforced Disappearances Enquiry, Truth and Reconciliation Commission Act, 2014

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Act on the Commission of Investigation on Disappeared Persons, Truth-Seeking and Reconciliation, 2071 (2014)

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Amending Acts

1. The Commission of Investigation on Disappeared Persons, Truth-Seeking and Reconciliation (First Amendment) Act, 2075 (2018) 2075.03.20 (2018 July 4)
2. The Commission of Investigation on Disappeared Persons, Truth-Seeking and Reconciliation (Second Amendment) Act, 2075 (2018) 2075.10.25 (2019 February 7)
3. The Commission of Investigation on Disappeared Persons, Truth-Seeking and Reconciliation (Third Amendment) Act, 2081 (2024) 2081.05.13 (2024 August 28)

Act Number 14 of the Year 2071 (2014)

An Act Made to Make Provision Relating to the Commission of Investigation on Disappeared Persons, Truth-Seeking and Reconciliation

Preamble: Whereas, Article 33 of the Interim Constitution of Nepal, 2063 (2007) mentions the provision of providing relief to the affected families based on the report of the Investigation Commission formed in relation to the persons who were disappeared during the armed conflict and to form a high-level Truth-Seeking and Reconciliation Commission to seek the truth about persons who committed serious violations of human rights and crimes against humanity during the armed conflict and to create an environment of reconciliation in the society;

Whereas, Clause 5.2.5 of the Comprehensive Peace Accord mentions the provision of forming a high-level Truth-Seeking and Reconciliation Commission by mutual agreement to seek the truth about those involved in serious violations of human rights and crimes against humanity during the armed conflict and to create an environment of reconciliation in the society;

Having assimilated the spirit and sentiment of the Interim Constitution of Nepal, 2063 (2007) and the Comprehensive Peace Accord, it is desirable to make necessary provisions for the formation of the Commission of Investigation on Disappeared Persons and the Truth-Seeking and Reconciliation Commission to bring the actual facts before the public by conducting truth-seeking and investigation into incidents of serious violations of human rights and crimes against humanity that occurred during the armed conflict and about persons involved in such incidents, to create an environment of sustainable peace and reconciliation by enhancing mutual harmony and tolerance through reconciliation in the society, and to recommend for legal action against persons involved in serious crimes related to such incidents, including providing reparation to the victims of such incidents;

Now, therefore, the Constituent Assembly, in its capacity as the Legislature-Parliament pursuant to Article 83 of the Interim Constitution of Nepal, 2063 (2007), has enacted this Act. Chapter 1

Preliminary

1. Short Title and Commencement: (1) This Act may be cited as the "Act on the Commission of Investigation on Disappeared Persons, Truth-Seeking and Reconciliation, 2071 (2014)."

(2) This Act shall commence immediately. 2.

Definitions: Unless the subject or context otherwise requires, in this Act, ? (a) "Chairperson" means the Chairperson of the Commission. (b) "Commission" means the Commission of Investigation on Disappeared Persons or the Truth-Seeking and Reconciliation Commission formed pursuant to Section 3. (c) "Complaint" includes a petition. (d) "Prescribed" or "as prescribed" means as prescribed or as provided for in the rules framed under this Act. (e) "Reparation" includes compensation, facility, or concession provided to a victim pursuant to Section 23. (f) "Family" means the husband, wife, son, daughter, father, mother, mother-in-law, father-in-law, grandfather, grandmother, grandson, granddaughter, or brother, sister living in a joint family of the victim. (g) "Perpetrator" means a person involved in amended by the Third Amendment. a violation of human rights or an offence relating to a serious violation of human rights during the armed conflict, and the term also denotes a person who orders the commission of such an offence. (h) "Victim" means a person who died, added by the Third Amendment. was disappeared, or suffered physical, mental, sexual or economic harm or injury, or was detained as a result of amended by the Third Amendment. a violation of human rights or a serious violation of human rights that occurred during the armed conflict, and a member of his/her family, and the term also denotes a community that has suffered a serious adverse human, social or community impact as a result of amended by the Third Amendment. a violation of human rights or a serious violation of human rights. amended by the Third Amendment.(i) "Ministry" means the Ministry of Law, Justice and Parliamentary Affairs of the Government of Nepal. amended by the Third Amendment.(j) "Violation of human rights" means any other act done by a side of the armed conflict in a targeted or planned manner against unarmed persons or the public during the armed conflict, contrary to the prevailing laws of Nepal, international human rights or humanitarian law, excluding serious violations of human rights. added by the Third Amendment.(j1) "Serious violation of human rights" means the following acts committed by a party to the conflict during the armed conflict: (1) Rape or serious sexual violence, (2) The following acts committed by a side of the armed conflict in a targeted or planned manner against unarmed persons or the public: (a) Arbitrary killing, (b) Act of causing a person to disappear, or Explanation: For the purpose of this clause, "act of causing a person to disappear" means a person disappeared and not found by a side of the armed conflict during the armed conflict. (c) Inhuman or cruel torture. (k) Deleted by the Third Amendment. (l) "Comprehensive Peace Accord" means the accord concluded between the Government of Nepal and the then Communist Party of Nepal (Maoist) on 5th Mangsir, 2063 (21st November, 2006). added by the Third Amendment.(l1) "Special Court" means the Special Court pursuant to Section 29A. (m) "Secretary" means the Secretary of the Commission. (n) "Member" means a member of the Commission, and the term also denotes the Chairperson. (o) "Armed conflict" means the armed conflict that occurred between the state party and the then Communist Party of Nepal (Maoist) from 1st Falgun, 2052 (13th February, 1996) to 5th Mangsir, 2063 (21st November, 2006).

Chapter 2

Formation of the Commission

3. Formation of the Commission: (1) For the purpose of bringing the actual facts before the public by

conducting truth-seeking and investigation into incidents relating to amended by the Third Amendment. violation of human rights and serious violation of human rights that occurred during the armed conflict and about persons involved in such incidents, bringing about reconciliation between the perpetrator and the victim, and making recommendations for legal action against persons involved in amended by the Third Amendment. serious violation of human rights, including providing reparation to the victim, the Government of Nepal shall form, by publishing a notice in the Nepal Gazette, separately as independent, impartial, accountable and high-level, the Commission of Investigation on Disappeared Persons and the Truth-Seeking and Reconciliation Commission.

(2) The Commission shall consist of five members including the Chairperson, with at least one woman member.

(3) For recommending the appointment of the Chairperson and Members, there shall be a Recommendation Committee as follows: ?

(a) A person designated by the Government of Nepal from amongst former Chief Justices ? Chairperson

(b) The Chairperson of the National Human Rights Commission or a member of that Commission designated by him/her ? Member

(c) Three persons, including at least one woman, nominated by the Government of Nepal from amongst human rights activists, psychologists, legal experts, forensic experts, conflict experts, sociologists, women rights activists, or persons involved in the peace process ? Member

(4) The Recommendation Committee pursuant to sub-section (3) shall recommend the names to the Government of Nepal for appointment as Chairperson and Member from amongst the persons qualified to be the Chairperson and Member under this Act.

amended by the Third Amendment.(5) The Recommendation Committee pursuant to sub-section (3) shall adopt the following procedure before recommending the names of the Chairperson and Members: ?

(a) Prepare a shortlist of persons qualified for appointment to the Commission and publish it for public feedback,

(b) On the basis of the background of the persons included in the list pursuant to clause (a) and the feedback received in relation to them, recommend suitable persons for appointment to the post of Chairperson and Member of the Commission.

added by the Third Amendment.(6) Other provisions relating to selection shall be as determined by the Committee itself.

added by the Third Amendment.(7) The Recommendation Committee shall complete the recommendation of the names of the Chairperson and Members within a maximum of two months from the date of its formation.

4.

Qualifications of Chairperson and Member: The following person shall be qualified for appointment to the post of Chairperson or Member: ? (a) Has obtained at least a post-graduate degree from a recognized educational institution, (b) Is not a member of any political party at the time of appointment, (c) Has high moral character, (d) Has worked in the field of human rights, peace, law, conflict management or sociology, (e) Has completed the age of thirty-five years, (f) In the case of the Chairperson, has been a Justice of the Supreme Court or Chief Judge of an Appellate Court, has worked in a special class post of the Nepal Judicial Service, or is

qualified to be a Justice of the Supreme Court. 5. Disqualification for Chairperson and Member: The following person shall be deemed disqualified for appointment to the post of Chairperson or Member: ? (a) A non-Nepali citizen, (b) Convicted by a court on a criminal charge involving moral turpitude, (c) Punished for an offence relating to a serious violation of human rights, (d) Involved in the armed conflict, (e) Recommended by the National Human Rights Commission for action regarding an offence relating to violation of human rights. amended by the Third Amendment. 6. Term of Office: (1) The term of office of a Chairperson or Member appointed after the commencement of this Section shall, subject to Section 38, be four years from the date of appointment. (2) Notwithstanding anything contained in sub-section (1), if the work of the peace process is not completed by the Commission within the period mentioned in that sub-section, the Government of Nepal may, on the basis of work progress and assessing the time required to complete the work, extend the term of office of the Chairperson or Member. (3) Notwithstanding anything contained in sub-section (1) or (2), if the Commission declares that the work of the peace process has been completed before the expiry of the term of office, the term of office of the Chairperson or Member shall be deemed to have expired from that date. (4) Notwithstanding anything contained elsewhere in this Section, if a Chairperson or Member lacks competence or does not conduct himself/herself according to the conduct befitting the post, the Government of Nepal shall form a three-member investigation committee under the convenorship of a former Chief Justice to investigate the matter. (5) If the investigation committee pursuant to sub-section (4) investigates and recommends removal of such Chairperson or Member from office, the Government of Nepal shall remove such Chairperson or Member from office.

Provided that an opportunity to submit a defense shall be given to such Chairperson or Member before removal.

(6) Other provisions relating to investigation under this Section shall be as prescribed. 7. Circumstances of Vacancy: (1) The post of Chairperson or Member shall be deemed vacant in the following circumstances: ?

(a) If he/she resigns from his/her post before the Prime Minister,

(b) If he/she becomes disqualified to hold his/her post pursuant to Section 5,

amended by the Third Amendment. (b1) If the term of office expires pursuant to sub-section (1) of Section 6,

added by the Second Amendment. (c) If he/she is removed from the post he/she holds pursuant to sub-section (5) of Section 6,

(d) If he/she dies.

(2) If the post of Chairperson or Member becomes vacant for any reason, it shall be filled by completing the procedure pursuant to Section 3.

added by the Second Amendment. (3) Notwithstanding anything contained in sub-section (2), before the expiry of the term of office pursuant to sub-section (4) of Section 6, the post of Chairperson or Member may be filled by completing the procedure pursuant to Section 3. 8. Service Conditions of Chairperson and Member: (1) The Chairperson and Members shall be full-time office bearers of the Commission.

(2) The remuneration of the Chairperson and Members shall be respectively the same as that of the Chairperson and Members of the National Human Rights Commission.

(3) The service conditions and other facilities of the Chairperson and Members shall be as prescribed by the Government of Nepal. 9. Meeting and Decision of the Commission: (1) The meeting of the Commission shall

be held at such place, date and time as designated by the Chairperson, as necessary.

(2) Notwithstanding anything contained in sub-section (1), in the absence of the Chairperson, the meeting of the Commission shall be held at such place, date and time as designated by the Secretary in consultation with the Members.

(3) If more than fifty percent of the total number of members of the Commission are present, the quorum for the meeting of the Commission shall be deemed to be fulfilled.

(4) The meeting of the Commission shall be presided over by the Chairperson, and in his/her absence, by the senior member present at the meeting.

(5) The decision of the Commission shall be made by consensus.

If a decision cannot be reached by consensus, the opinion of the majority in the meeting of the Commission shall prevail, and in the case of a tie, the person presiding over the meeting shall cast a casting vote.

(6) The decision of the meeting of the Commission shall be authenticated by the Chairperson.

(7) If the Commission so desires, it may invite an expert on matters relating to the proceedings of the Commission to participate as an observer in the meeting of the Commission.

(8) Other procedures relating to the meeting of the Commission shall be as determined by the Commission itself. 10. Secretary: An officer of the special class of the Nepal Judicial Service, appointed or designated by the Government of Nepal, shall act as the Secretary of the Commission. 11. Staff of the Commission: (1) The staff required for the Commission shall be provided by the Ministry. While providing staff in such manner, the Ministry shall consult with the Commission.

added by the Third Amendment.(1a) While transferring an employee working in the Commission to another office, the Government of Nepal shall obtain the consent of the Commission.

(2) Notwithstanding anything contained in sub-section (1), if the expert staff requested by the Commission is not available with the Government of Nepal, or if the Ministry is unable to provide staff in the number requested by the Commission, the Commission may appoint staff on contract.

(3) The work, duties, rights, term of office, remuneration and facilities of staff appointed on contract pursuant to sub-section (2) shall be as determined by the Commission. Provided that the remuneration and facilities of such staff shall not exceed those of the staff of the Government of Nepal of the same rank or level working in the Commission.

(4) Staff working in the Commission pursuant to sub-section (1) shall receive allowances and facilities as determined by the Commission. 12. Resources and Audit of the Commission: (1) The Ministry shall arrange for the funds, building, equipment and other resources required for the functioning of the Commission.

(2) The funds received by the Commission pursuant to sub-section (1) shall be deposited in an account opened by the Commission in a commercial bank.

(3) All expenses of the Commission shall be borne from the funds deposited pursuant to sub-section (2).

(4) The Commission shall maintain accounts of its income and expenditure in the format adopted by the Government of Nepal.

(5) The audit of the Commission shall be carried out by the Auditor General. Chapter 3

13.

Functions, Duties and Powers of the Commission: (1) The functions, duties and powers of the Commission shall be as follows: ? (a) amended by the Third Amendment. To investigate, seek truth and record incidents relating to violation of human rights or serious violation of human rights and bring the actual facts before the public, added by the Third Amendment.(a1) To analyze the trend, nature, gravity of violation of human rights and serious violation of human rights and the acts committed by the parties to the conflict during the armed conflict, added by the Third Amendment.(a2) To determine the process of investigation into violation of human rights and serious violation of human rights and conduct truth-seeking, added by the Third Amendment.(a3) To identify the root causes of the armed conflict and recommend for policy, legal and institutional reforms to be undertaken to ensure that incidents of violation of human rights and serious violation of human rights do not occur in the future, added by the Third Amendment.(a4) To recommend persons involved in an incident of serious violation of human rights for vetting, (b) To identify the victim and the perpetrator, (c) To initiate reconciliation between the perpetrator and the victim and bring about reconciliation, (d) To recommend regarding the reparation to be provided to the victim or his/her family member, (e) To recommend for action against perpetrators who have not been reconciled and not included in amnesty, (f) To provide the victim with an identity card and information after investigation as prescribed, (g) To do and cause to do other works mentioned in this Act. (2) Notwithstanding anything contained in the prevailing law, matters relating to incidents that occurred during the armed conflict, and cases pending in various courts and bodies shall be investigated by the Commission in consultation with the concerned court or body. (3) Notwithstanding anything contained in the prevailing law, the Commission shall investigate complaints pending in various bodies on matters relating to incidents that occurred during the armed conflict. (4) If there is a dispute as to whether an incident occurred during the armed conflict or not, the decision on that matter shall be made by the Commission. (5) The Commission of Investigation on Disappeared Persons shall investigate matters relating to disappeared persons and the Truth-Seeking and Reconciliation Commission shall investigate matters relating to other incidents of amended by the Third Amendment. violation of human rights or serious violation of human rights under this Act. (6) The Commission may investigate incidents relating to amended by the Third Amendment. violation of human rights or serious violation of human rights on the following basis: ? (a) If a complaint is filed with the Commission by a victim or someone on his/her behalf, (b) If information is received by the Commission from any source, (c) If the Commission deems it appropriate to investigate. added by the Third Amendment.(6a) For the purpose of sub-section (6), after the appointment of the Chairperson and Members pursuant to Section 3, if a victim of rape or serious sexual violence during the armed conflict or someone on his/her behalf has missed the opportunity to file a complaint, the Commission shall publish a public notice granting a one-time period of three months to file a complaint, and shall call for complaints. added by the Third Amendment.(6b) Notwithstanding anything contained in this Act and the rules framed under this Act, a victim who could not file a complaint due to circumstances beyond his/her control within the period during which the Commission had called for complaints before the commencement of this Section may file a complaint with the Commission within three months from the date of appointment of the Chairperson and Members pursuant to Section 3, stating the basis and reason for not being able to file such complaint.

If the basis and reason mentioned in such complaint appear reasonable, the Commission shall investigate pursuant to sub-section (6).

(7) To facilitate the process of filing a complaint with the Commission for children, senior citizens, persons

with disabilities and persons subjected to sexual violence, the Commission may make separate arrangements as prescribed.

added by the Third Amendment.(7a) If complaints of incidents of violation of human rights and serious violation of human rights during the armed conflict have been registered with various bodies including the National Human Rights Commission or the National Women Commission, and such complaints are pending in those Commissions or bodies, and if information comes to the attention of the Commission from those Commissions or bodies or any other source, the Commission may request those complaints and related details from the concerned Commission or body for the purpose of investigating such complaints.

added by the Third Amendment.(7b) Upon request pursuant to sub-section (7a), such Commission or body shall send the complaints and related details to the Commission.

added by the Third Amendment.(7c) To effectively reach the victim, the Commission may establish offices or mechanisms at the provincial and district or local level as required.

(8) Other provisions relating to the procedure for filing a complaint with the Commission shall be as prescribed. 14.

Powers of the Commission Relating to Investigation: (1) While conducting an investigation under this Act, the Commission may exercise the same powers as a court under the prevailing law in relation to the following matters: ? (a) To summon any person before the Commission and take information or record a statement, (b) To examine witnesses and record their deposition, (c) To order the production of any document or record, (d) To call for any document or a copy thereof from any government or public office or court, Provided that while calling for such document from any court, the permission of the concerned court shall be obtained. (e) To receive evidence, (f) To conduct or cause to conduct a site inspection or order the production of material evidence. (2) If a witness or any other person cannot be produced before the Commission due to security reasons or other causes, the Commission may record the deposition or statement of such witness or person through video conference or any other means. (3) In relation to producing any person or presenting documents, records, material or evidence pursuant to sub-section (1), the Commission may fix a reasonable time if it deems appropriate. (4) If the Commission believes that any object or document relating to its investigation is with any person or at any particular place, it may search or cause to search such person or place without notice and seize or cause to seize any object or document found, or take or cause to take full or partial copies or reproductions of such document. (5) If it is necessary to investigate any person holding a public office under this Act, and if there is a likelihood that such person may destroy evidence if kept in office, the Commission may write to the concerned body to suspend him/her, and upon receipt of such letter, the concerned body shall also suspend such person for a period as provided in the law relating to his/her service conditions, and if not so provided, for a maximum of three months. (6) If the Commission is satisfied that a disappeared person has been killed and the corpse of the deceased has been buried at any place, the Commission may excavate such place to discover the truth. (7) Excavation pursuant to sub-section (6) shall be conducted in a systematic manner, and if any human corpse or remains are found during such excavation, the Commission shall, as far as possible, carry out a DNA or post-mortem examination of such corpse and hand over such corpse or remains to a family member of the deceased if available. (8) Other provisions relating to the investigation of complaints and information received by the Commission shall be as prescribed.

15. Duty to Provide Assistance in the Work of the Commission: (1) It shall be the duty of the concerned person, institution or body to produce the documents, records, material or evidence requested by the Commission pursuant to Section 14 and to appear before the Commission and provide information,

statements or depositions.

(2) If the Commission requests the assistance of the local administration while searching any place or producing any person before the Commission in the course of investigation under this Act, it shall be the duty of the local administration to assist the Commission.

(3) If the person, institution or body having the duty under sub-section (1) or (2) fails to assist the work of the Commission, the Commission may impose a fine of up to fifteen thousand rupees for each such failure on such person or the head of such institution or body.

(4) If the person having a duty under sub-section (1) or (2) is an office bearer or employee of any government body or public institution, the Commission may write to the concerned authority to take departmental action or to take action under the prevailing law on the charge of not fulfilling official responsibilities, and upon receipt of such letter, the concerned authority shall take departmental action and inform the Commission thereof.

(5) If anyone obstructs or opposes the proceedings of the Commission, the Commission may impose a fine of up to fifteen thousand rupees for each such act on such person. 16. Power to Initiate Action for Contempt: (1) The Commission may initiate action for its contempt. While initiating action in such manner, if the Commission determines that contempt has occurred, it may impose a fine of up to fifteen thousand rupees or imprisonment for up to three months or both.

(2) Notwithstanding anything contained in sub-section (1), if the concerned person or body offers an apology to the satisfaction of the Commission, the Commission may grant pardon, or if a penalty has already been imposed, remit or reduce the penalty, or stay the execution of the penalty on conditions stipulated by the Commission and order that if such conditions are met, the penalty shall not be enforced. 17.

Protection of Witnesses and Other Persons: (1) If any person appearing before the Commission to give a statement, deposition or information, a victim or a member of his/her family requests the Commission for his/her security, or even without such request, if it appears necessary to provide security to such person, or to any person assisting the Commission or working in the Commission, the Commission shall make appropriate arrangements for the security of such person. (2) For the security of any person pursuant to sub-section (1), the Commission may take the assistance of the Government of Nepal as required. (3) No case shall be filed or legal action taken against any person solely on the ground that he/she has given a statement or deposition or provided any information to the Commission. (4) If requested by a person who appeared before the Commission to give a statement, deposition or information, the Commission may provide reasonable expenses for his/her travel, food and lodging expenses. (5) If a person giving a statement or deposition, or providing any notice, information or evidence before the Commission wishes to keep his/her name confidential, the Commission shall keep the name of such person confidential. (6) To facilitate the process of giving a statement or deposition for children, senior citizens, persons with disabilities and persons subjected to sexual violence, the Commission may make separate arrangements as prescribed. (7) If any employee or security personnel working in a government body informs that it is not possible to give a statement, deposition or information to the Commission while remaining in the body where he/she works due to security reasons, the Commission may write to the concerned body to transfer such employee to a body where he/she may be transferred, and upon receipt of such letter, that body shall also transfer such employee. (8) Provisions relating to the protection of the security, physical and mental well-being, privacy and dignity of witnesses, victims and persons assisting the work of the Commission shall be as prescribed. 18. Power to Conduct Public Hearings: (1) If the Commission deems it necessary to discover the truth on matters relating to amended by the Third Amendment. violation of human rights and serious violation of human rights, it may

conduct a public hearing. (2) The manner and procedure for conducting a public hearing shall be as determined by the Commission. 19.

Proceeding of the Commission to be Open and Transparent: amended by the Third Amendment.(1) While performing its functions, the Commission shall act in a transparent manner in a way that is victim-centered, gender-friendly and disability-friendly. (2) Notwithstanding anything contained in sub-section (1), proceedings which may adversely affect the reputation, self-respect, privacy or security of any person, disturb peace and order, or adversely affect the investigation process may be conducted confidentially. (3) The Commission may from time to time make public details relating to its proceedings for the information of the victim and the general public. 20. Maintenance of Independence and Impartiality: (1) The Commission shall perform its functions independently and impartially. (2) The Commission shall not act with bias, favoritism or malice towards anyone. (3) While conducting its proceedings, the Commission shall adhere to universally accepted principles of human rights and justice. (4) If a person to be investigated or proceeded against by the Commission is a relative of a Member or is directly related to him/her in the course of any transaction, such Member shall not participate in such investigation or proceeding. 21. Power to File Complaints: While investigating a complaint or information received by the Commission, if there is insufficient ground to initiate action, the Commission may file such complaint by stating the reason. Provided that if evidence is later obtained on a matter in which action ought to be taken regarding such complaint, the Commission may investigate that complaint. 22.

Power to Bring About Reconciliation: amended by the Third Amendment.(1) If the perpetrator or the victim files a petition for reconciliation with the Commission, the Commission shall, with the free consent of the victim, bring about reconciliation between the perpetrator and the victim in incidents of violation of human rights other than serious violation of human rights. (2) In relation to bringing about reconciliation between the perpetrator and the victim pursuant to sub-section (1), the Commission shall cause the perpetrator to express remorse for his/her wrongful act and to apologize to the victim. (3) While bringing about reconciliation pursuant to sub-section (1), the Commission may cause the perpetrator to provide reasonable compensation to the victim for the loss caused. (4) To encourage the perpetrator and the victim for reconciliation, the Commission may do or cause to do the following acts: ? (a) Organize a reconciliation ceremony involving the perpetrator, victim and their families in the armed conflict-affected area, (b) With the involvement of the perpetrator, victim and their families, cause the construction of a memorial or public place or the erection of a pillar in memory of persons who died during the armed conflict, (c) Publish various articles, compositions, essays, songs, pictures, etc. relating to reconciliation, (d) Enhance social and community harmony, (e) Perform other suitable acts. (5) If the victim has died or the victim is a minor or mentally ill, the Commission may bring about reconciliation between the family of the victim and the perpetrator under this Section. amended by the Third Amendment.(6) Notwithstanding anything contained elsewhere in this Act, even if a proceeding or case regarding an incident of violation of human rights is at any stage, reconciliation may be brought about with the free consent of the victim. 22A. Right to Reparation: added by the Third Amendment.(1) A victim shall have the right to obtain reparation under this Act. (2) The following circumstances shall not be deemed to adversely affect the right of a victim to obtain reparation: ? (a) The identity of the perpetrator is not known, (b) Reconciliation has occurred or not occurred between the victim and the perpetrator, (c) A recommendation has been made or not made to grant amnesty or prosecute the victim. (3) A person mentioned in Section 25A or a member of his/her family who has been directly or indirectly affected by the armed conflict during the armed conflict shall also have the right to reparation under this Act. 23.

Recommendation for Reparation: amended by the Third Amendment.(1) After conducting a preliminary investigation under this Act, the Commission shall as soon as possible recommend to the Government of Nepal to provide psychosocial counseling, interim relief, relief and compensation, rehabilitate, or make other appropriate arrangements for the victim. While recommending the amount of compensation for the loss of property of the victim in such manner, the value of the property at the time of such loss, the period during which the victim is about to receive compensation, and the prevailing market price shall also be taken into consideration. added by the Third Amendment.(1a) While making a recommendation for reparation pursuant to sub-section (1), the Commission shall ascertain whether the victim has received reparation under this Act and make the recommendation accordingly. added by the Third Amendment.(1b) While recommending interim relief pursuant to sub-section (1), priority shall be given to victims of rape, sexual violence or torture. (2) Notwithstanding anything contained in sub-section (1), if the Commission deems appropriate, it may recommend to the Government of Nepal to provide the following facilities or concessions to the victim or, as the case may be, any member of his/her family: ? (a) Free education and health care, (b) Skill-based training, (c) Loan facility without interest or at concessional interest, (d) Arrangement of shelter, (e) Employment facility, (f) Other facilities or concessions as the Commission deems appropriate. added by the Third Amendment.(2a) The Commission shall recommend to the Government of Nepal to conduct or cause to conduct community reparation programs as required, targeting the victim, his/her dependent family members and victims of armed conflict-affected areas. added by the Third Amendment.(2b) If the victim is not satisfied with the recommendation made by the Commission for reparation pursuant to sub-section (1), (2) or (2a), the victim may file a petition with the Special Court stating the basis and reason therefor.

If the basis and reason mentioned in the petition filed by the victim appear reasonable, the Special Court may give an appropriate order.

(3) Before recommending the provision of any facility, concession or other appropriate arrangements to the victim under this Section, the Commission shall ascertain the wish or demand of the victim and recommend facilities, concessions and other arrangements according to his/her priority.

(4) amended by the Third Amendment.The basis and criteria for determining the compensation, facility or concession to be provided under this Section shall be as prescribed.

(5) Deleted by the Third Amendment.

(6) In the event of the death of the victim, the compensation, facility or concession that the victim would have received under this Section amended by the Third

(5) Notwithstanding anything written in the prevailing law, a case filed under sub-section (4) shall be deemed to have been filed within the limitation period as per the prevailing law.

(6) While filing a case under this section, the Attorney General or a government attorney authorized by him/her may, taking into account the existence of the situation under sub-section (2) and the circumstances and reasons of the incident and the principles of transitional justice, claim a demand for a sentence of twenty-five percent of the sentence under the prevailing law at that time in matters other than rape or serious sexual violence and in incidents of human rights violation under sub-section (1) of section 25.

(7) If a person holding a public office is in detention or judicial custody upon a case filed under this section, such person shall be deemed to be automatically suspended from office for the duration of such detention or judicial custody. 29A.

29B. Transfer of Cases: Added by the Third Amendment.(1) At the time of commencement of this section, the Attorney General shall send a letter to the concerned court to transfer to the Special Court any cases, appeals, petitions, and reports relating to human rights violations and serious human rights violations that occurred during the armed conflict and are pending in the District Court or High Court.

(2) Upon receipt of a letter under sub-section (1), the concerned court shall send all original case files related to such cases, appeals, petitions, and reports to the Special Court within twenty-one days.

(3) Within fifteen days from the date of receipt of the original case files under sub-section (2), the Special Court shall conduct an inquiry as to whether they relate to incidents of human rights violations or serious human rights violations during the armed conflict and shall send the original case files to the Commission along with a report containing its opinion.

(4) Upon receipt of the original case files under sub-section (3), the Commission shall conduct an inquiry as to whether they relate to incidents of human rights violations or serious human rights violations and shall submit the original case files and its report to the Special Court as soon as possible.

(5) While conducting an inquiry under sub-section (4), if parties agree to a reconciliation between the perpetrator and the victim or if the victim consents to grant forgiveness regarding an incident of human rights violation under this Act, the Commission shall submit a report stating that fact together with the original case files to the Special Court.

(6) Based on the report received under sub-section (5), for the proceedings relating to the recommendation of reconciliation or forgiveness in such incident under this Act, the Special Court may strike off the record and send the original case files related to such case to the Commission.

(7) If it is not evident from the report under sub-section (4) that such act does not relate to a human rights violation or serious human rights violation, the Special Court shall return the original case files to the concerned court within fifteen days. 29C.

Right to Submit Application: (1) Before the case is adjudicated by the Special Court, the defendant may submit an application to the Special Court to provide an opportunity to express the truth of the incident referred to in the accusation against him/her, to assist the judicial process, to express remorse for having committed a human rights violation and to pledge not to engage in such acts in the future, or to apologize to the victim. (2) Upon receipt of an application under sub-section (1), the Special Court shall provide a reasonable opportunity to the person submitting such application. Added by the Third Amendment.29D.

Provisions Relating to Punishment: (1) Notwithstanding anything written in the prevailing law, in the case of a person involved in an act of human rights violation or serious human rights violation filed under this Act, the Special Court shall determine the punishment taking into account the circumstances and reasons of such incident and the principles of transitional justice. (2) While determining punishment under sub-section (1), the following matters shall also be considered:- (a) The demand claim taken under sub-section (6) of section 29 at the time of filing the case, (b) Having fully disclosed the true facts and circumstances to the Commission or the Special Court by revealing the truth of the incident to the extent known, (c) Not having assisted the judicial process by not expressing the truth regarding having committed or being involved in such an act despite being found guilty, (d) Having expressed remorse for being involved in such an act, (e) Having apologized to the victim, (f) Having provided or agreed to provide the amount prescribed by the Commission or the Special Court to the victim as compensation, (g) Having pledged not to engage in such acts in the future. (3) Notwithstanding anything written elsewhere in this section, if a case has already been filed in

relation to an incident connected with the armed conflict in any court formed under the prevailing law of Nepal at that time and punishment has already been imposed, no case shall be filed under this Act against such person for the same matter and no punishment shall be imposed. Added by the Third Amendment.29E.

Right to Appeal: (1) A party dissatisfied with the decision or final order of the Special Court may appeal to the Supreme Court within thirty-five days from the date of such decision or final order. (2) For the purpose of hearing appeals filed under sub-section (1), there shall be a joint bench relating to transitional justice in the Supreme Court, and for that purpose, the Chief Justice shall prepare a list of judges of the Supreme Court as required and designate a bench from among them. (3) While conducting the hearing of an appeal under this section, the bench under sub-section (2) shall take into account the accepted principles of transitional justice.

30. Monitoring of Reports Submitted by the Commission: (1) The National Human Rights Commission shall monitor whether the recommendations mentioned in the Commission's report have been implemented or not. (2) While monitoring under sub-section (1), if it is found that the Ministry has not implemented or caused to implement the recommendations mentioned in the Commission's report, the National Human Rights Commission may draw the attention of the Ministry to implement such recommendations, and the Ministry shall implement or cause to implement the matters thus drawn to its attention as soon as possible. Chapter-5

Miscellaneous 31. Power to Form Sub-Committees or Task Forces: (1) The Commission may, for the smooth conduct of its work, form various sub-committees or task forces as required, incorporating experts from relevant fields. (2) The functions, duties, powers, procedure, and facilities to be received by members of the sub-committee or task force formed under sub-section (1), and other arrangements, shall be as prescribed by the Commission. Added by the Third Amendment.31A. Units in the Commission: (1) The Commission shall have the following separate units:- (a) Truth Investigation and Inquiry Unit, (b) Reparation Unit, (c) Incident

Investigation Unit Relating to Serious Human Rights Violations, (d) Inquiry Unit for Incidents of Sexual Violence and Rape, (e) Victim Coordination Unit, (f) Other units as prescribed. (2) The functions, duties, and terms of reference of the units under sub-section (1) shall be as prescribed. (3) In addition to the staff of the Commission, experts on relevant subjects shall also be present in the units under sub-section (1). Added by the Third Amendment.31B. Special Provision Relating to Rights of Victims: In addition to the rights mentioned elsewhere in this Act, the victim shall also have the rights mentioned in Chapter-2 of the Crime Victim

Protection Act, 2075. 32.

Power to Avail Services of Experts: (1) The Commission may, for performing any work under this Act, avail the services of domestic or foreign experts or specialized bodies in relevant subjects as required. (2) The appointment, functions, duties, and powers of the experts and specialized bodies providing services under sub-section (1), and the terms and facilities of service, shall be as prescribed by the Commission. (3) If the Commission requires the service of any body or institution, such body or institution shall, notwithstanding anything written in the prevailing law, make available to the Commission the service requested by the Commission. 33. No Hindrance in Conducting Work: The Commission shall not be hindered in conducting its work solely by reason of the vacancy of the position of any member of the Commission. 34. Delegation of

Powers: (1) The Commission may, as required, delegate some of the powers conferred upon it under this Act to the chairperson, a member, the secretary, or a sub-committee or task force formed under section 31. (2) Notwithstanding anything written in sub-section (1), the power of the Commission relating to making reconciliation or recommending reparation, forgiveness, or action shall not be delegated. 35. Power to Reward a Person Providing Information: The Commission may reward a person, organization, body, or institution that assists the Commission or an investigation officer in discovering the truth in a matter inquired into by the Commission under this Act. 36. Power to Obtain Information, Details, Facts, and Knowledge: If

any information, details, facts, or knowledge obtained by any Commission formed under this Act after inquiry

is useful to another Commission, such information, details, facts, or knowledge may be obtained from that Commission. 37. Power to Coordinate: While conducting an inquiry under this Act, the Commission may coordinate and work with a commission or body established under the prevailing law or formed by the Government of Nepal that performs similar types of work. Amended by the Third Amendment.38.

Term of the Commission: (1) The term of the Commission shall be four years from the date of appointment of the chairperson and members under section 6. (2) Notwithstanding anything written in sub-section (1), if the work of the peace process cannot be completed by the Commission within the period mentioned in that sub-section, the Government of Nepal may, based on the progress of work, assess the time required to complete the work and extend the term of the Commission. (3) Notwithstanding anything written in sub-section (1) or (2), if the Commission declares that the work of the peace process has been completed before the said period, the term of the Commission shall be deemed to have ended from that date. 39. Dissolution of the Commission: (1) If the Commission completes its work under this Act or if the term of the Commission expires under section 38, the Commission shall be dissolved. (2) If the Commission is dissolved under sub-section (1), the property and liabilities in the name of the Commission shall devolve upon the Ministry. (3) If the Commission is to be dissolved under sub-section (1), the Commission shall hand over the records under its responsibility to the Ministry. 40. No Re-inquiry: No inquiry shall be conducted again by forming a commission on a matter that has already been inquired into by the Commission under this Act. Added by the Third Amendment.40A.

Transfer of Property: (1) Notwithstanding anything written in the prevailing law, if the name of a person who was disappeared during the armed conflict is included in the list of disappeared persons in the records of the Commission for the Investigation of Disappeared Persons and the whereabouts of such person have not been known until the commencement of this section, the claimant may submit an application to the concerned office or body for passing a deed relating to the partition of the share of property in the name of such person or in which such person has an interest, separating the share as per law, dividing the remaining property among the co-sharers, or transferring and registering the property in the name of the claimant. (2) Upon receipt of an application under sub-section (1), the concerned office or body shall conduct necessary inquiries as to whether the applicant is a claimant of the disappeared person and whether there are any other claimants besides him/her. (3) While conducting inquiries under sub-section (2), if it appears that the applicant is the only claimant, the share of the property of the disappeared person shall be kept in his/her name and the remaining property shall be transferred to the applicant's name; and if there are other claimants as well, the shares of the disappeared person, the applicant, and other claimants shall be separated, and the property falling to the applicant's share from the name of the disappeared person shall be transferred and registered in the applicant's name. (4) If there is any amount in a bank account in the name of the disappeared person under sub-section (1), and if such person had willed such amount to someone, it shall be paid to that person; and if there is no such person willed, it shall be paid to his/her claimant by the concerned bank. (5) If the disappeared person under sub-section (1) had served in any government body, corporation, or institution and has not already received retirement benefits, gratuity, and other service facilities to which he/she is entitled under the law relating to service conditions, such service facilities shall be provided to the claimant of the disappeared person. 41. Oath: Before assuming office, the chairperson shall take an oath in the format as per the Schedule before the Chief Justice, and a member shall take an oath before the chairperson. 42.

Power to Remove Difficulties: (1) If any difficulty arises in the implementation of this Act, the Government of Nepal may, in consultation with the Commission, issue an order to remove the difficulty by publishing a notice

in the Nepal Gazette. (2) An order issued under sub-section (1) shall be submitted to the transformed by the Third Amendment.Federal Parliament within thirty days. 43. Liaison with Government of Nepal: The Commission shall liaise with the Government of Nepal through the Ministry. 44. Power to Make Rules: The Government of Nepal may, in consultation with the Commission, make rules for implementing this Act. Schedule (Relating to section 41) Oath I, , do solemnly promise/swear in the name of God that, remaining loyal to the people of Nepal and the Constitution and the prevailing law, I will honestly and faithfully discharge the responsibilities and duties of the office of Chairperson/Member of the Commission for the Investigation of Disappeared Persons/Truth and Reconciliation Commission that I have assumed, without fear, favor, partiality, malice, or greed, and that I will not disclose any matter that comes to my knowledge in the course of performing my duties, except when required to comply with the prevailing law, whether I remain in office or not. Signature of the person taking oath: Date: Signature of the person administering the oath: Name: Position: Date: